



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY 25 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9380
(FOURTH REVISION)

EXPIRATION DATE: April 30, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Navajo Pipeline Company
Artesia, NM
Former Grantee: ARCO Pipe Line Company
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of petroleum crude oil, Class 3, in a non-DOT specification packaging described as a trailer mounted mechanical displacement meter prover. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.201, 173.202 and 173.203 insofar as non-DOT specification single packagings are not authorized.
5. BASIS: This exemption is based on the application of Navajo Pipeline Company dated May 10, 2000, submitted in accordance with § 107.109 and supplemental information from ARCO Pipe Line Company dated May 8 and May 9, 2000.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Petroleum crude oil	3	UN1267	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification container described as a mechanical displacement meter prover mounted on a truck chassis. The meter prover has a nominal water capacity of 85 gallons and is designed to ANSI Standard B31.4 and American Petroleum Institute Standard 2351. The pressure vessel is made up of seamless ASTM SA-53, 8 inch nominal pipe size (NPS), schedule 40, grade B or equivalent pipe. Pipe assembly is by 150 lb. ASA welded flange joints. The maximum service pressure is 285 psig. Pressure relief devices are not required. The motor vehicle also contains two (2) 15 gallon sump tanks or one (1) 15-gallon solvent tank and one (1) 38 gallon sump tank located below the truck bed. Each sump tank or solvent tank is equivalent to a DOT specification steel drum authorized for flammable liquids. The prover must be as shown on ARCO Pipe Line Company drawing 6.307.396 dated January 3, 1985, or the first revision dated June 1, 1989, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition:

(1) The bumper for the truck must meet the requirements of § 178.340-8(b) in effect in 1990 and § 383.86.

(2) During transportation, the pressure in the prover must not exceed 25 percent of the maximum service pressure.

b. TESTING -

(1) Each prover must be visually reinspected once a year and retested at least once every 5 years at not less than 75 percent of the prover's design pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000, are required to be in conformance with § 173.32(e).

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(2) Each solvent or sump tank must be visually reinspected once a year and pressure retested at least once every five years at a minimum pressure of 15 psig.

c. OPERATIONAL CONTROLS -

Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

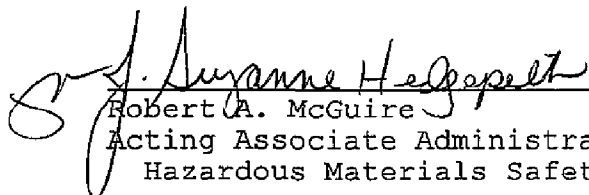
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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